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Case Number: BC710638 Hearing Date: July 10, 2026 Dept: 509

Hsiang Ling Liou v. Anthony De La Sota, et al.

DEFENDANT'S MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

MOVING PARTY: Defendant/Cross-Complainant Anthony De La Sota

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Hsiang Ling Liou (Plaintiff) brought this action against defendant Anthony De La Sota (Defendant) for: (1) nuisance, (2) trespass, and (3) negligence. Plaintiff and Defendant own adjacent real properties in Los Angeles. Plaintiff alleged that Defendant's property utilizes a concrete walkway, roof eaves, and an air conditioning unit, that encroach on Plaintiff's Property. Plaintiff asked Defendant to remove the encroachments so that Plaintiff can construct a new fence on the property line for Plaintiff's Property and develop her property with a new house; Defendant refuses.

On November 21, 2023, Plaintiff filed a Notice of Settlement of Entire Case.

On April 18, 2025, Defendant moved to enforce the settlement and enter judgment pursuant to Code of Civil Procedure, section 664.6. Plaintiff opposed. The Court granted Defendant's motion and entered judgment pursuant to the settlement agreement.

On June 13, 2025, Plaintiff filed an appeal challenging the final judgment.

The Court of Appeals dismissed the appeal and on April 28, 2026, issued the remittitur.

On June 8, 2026, Defendant filed this instant motion to recover their reasonable attorney's fees and costs on appeal. Plaintiff did not file an opposition. Plaintiff was properly served, via email, with this motion through his attorneys of record. (See, POS, 6/8/26; see also, Notice of Change of Firm Address, 1/7/26)

TENTATIVE RULING:

Defendant's Motion for Attorney's Fees is GRANTED in the amount of \$9,263.50.

Defendant's Motion for Costs is GRANTED in the amount of \$470.44.

Defendant may file and serve a proposed amended judgment, consistent with this ruling.

Defendant is ordered to give notice.

DISCUSSION:

Motion for Attorney's Fees, Costs, and Expenses

I. Analysis

A. Entitlement to Fees

On November 21, 2023, the parties entered into a settlement agreement. This Agreement stated: "If there is litigation or arbitration regarding this Agreement, the prevailing Party will be entitled to recover reasonable attorneys' fees and costs." (Kassouni Decl., Exh. 1, ¶ 7.3)

Further, the Court of Appeal stated that "Respondent(s) shall recover costs on appeal." (See 4/28/26 Remittitur (B347229) at p. 1.) Thus, the Court is bound to follow the Court of Appeal's determination on this subject. (Benson v. Greitzer (1990) 220 Cal.App.3d 11; Ramirez v. St. Paul Fire & Marine Ins. Co. (1995) 35 Cal.App.4th 473.)

Accordingly, Defendant is entitled to an award of reasonable attorney fees and costs.

B. Reasonableness of Fees

The determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal.App.4th 1127, 1134.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal.App.4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal.4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

The Court has broad discretion in determining the amount of a reasonable attorney's fee award which will not be overturned absent a "manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence." (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1393-94.) The Court need not explain its calculation of the amount of attorney's fees awarded in detail; identifying the factors considered in arriving at the amount will

suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

Here, Defendant seeks \$9,263.50 in attorney fees as well as costs in the amount of \$470.44. Although, upon a cursory review, the claimed fees appear to be somewhat excessive, by failing to oppose, Plaintiff has not formally challenged the reasonableness of Defendant's attorney's fees or costs. It was their burden to do so. (See, e.g., Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488 ["[I]t is the burden of the challenging party to point to the specific items challenged [within the moving party's verified billing invoice], with a sufficient argument and citations to evidence".])

Accordingly, Defendant's Motion for Attorney's Fees is GRANTED, as requested, in the amount of \$9,263.50.

Defendant's Motion for Costs is GRANTED in the amount of \$470.44.

IT IS SO ORDERED.

Dated: July 10, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.